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Police Beatings

On two occasions, Bhagat Singh and his fellow accused were mercilessly beaten up in court. On 10 April 1929, the magistrate, Rai Sahib Pandit Sri Kishen, began proceedings in Borstal Jail.[1] Six months later on 21 October 1929 the accused were subjected to extreme brutality.[2] He continued with the hearings for the next ten months until 1 May 1930, after which the proceedings were transferred to Poonch House, Lahore. That is where the second instance of police ill-treatment in the courtroom occurred. This is when the special tribunal took over the case pursuant to Lord Irwin's ordinance from 5 May 1930. However, just a week into that trial, on 12 May 1930, the true nature of colonial legal coercion was exposed when the accused were beaten up even more viciously under the judges' very noses on their express instructions. Both instances bear testimony to how prisoner mistreatment was an integral and inherent part of colonial trials held outside the normal discipline of the law.

The first occasion arose before Magistrate Rai Sahib Pandit Sri Kishen when one of the accused, a juvenile by the name of Prem Dutt Verma, threw a slipper at one of the approvers, Jai Gopal, as he entered the witness box to give evidence, on 21 October 1929. He was immediately seized and sent into solitary confinement for three months by the jail superintendent.[3] The next day, the courtroom management of the rest of the accused coming into court changed. Bhagat Singh and B.K. Dutt were in detention in Central Jail in Lahore. They were used to coming into court without any handcuffs. Those in Borstal Jail, who were juveniles, used to come to court with a handcuff on one hand only. Once they entered the dock these handcuffs were removed. The next day, on 22 October 1929, both Bhagat Singh and